

From: Schnede, Klaus
To: [Secretary](#)
Subject: Docket 17-10, Comments on Proposed NSA/NRA Regulations
Date: Monday, January 29, 2018 5:09:03 PM

To Whom It May Concern:

This email/letter is to fully support the effort on proposed NSA/NRA Regulations, i.e. deregulate the rates and services NVOCC's provide to customers such as Eastman Chemical Company.

- We frequently use NVOCC's for import and export shipments to/from the United States and foreign countries.
- When we negotiate service and rates with a NVOCC, we do not look at a published tariff in order to decide which NVOCC do use for a particular shipment. We obtain quotes from several different NVOCC's and compare the rates along with promised service and make the best possible selection.
- Our negotiations for a particular move center around freight rates and service. We do not necessarily need a contract in place to ship with the selected NVOCC. The NVOCC's we do business with today, we trust. They have been vetted, we have done business with them for years and we are comfortable doing business with them!
- We do not believe that a service contract needs to be filed with the FMC, what happens to these contract after they have been received? We can have a written agreement in place that is legally binding without it having to be file with the FMC. There is no need to meet filing deadlines, or spend tax-payers money to keep thousands of contract and tariff up-to-date and on file.
- If anything goes wrong and it is covered in an agreement between the two parties, i.e. BCO and NVOCC, we can go to arbitration, go to court or whatever remedy we chose to settle an issue. Again, terms can be written into a contract/agreement and still be legally binding without having to be filed with the FMC. In other countries around the globe this is common practice and works.

This letter is to support the effort to eliminate burdensome regulations which also cost money and time for the NVOCC. Make the services and freight rates more flexible and responsive to the needs of us customers.

Sincerely,

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